

CODE 1945

IN THE FAMILY DIVISION
OF THE SECOND JUDICIAL DISTRICT COURT OF THE STATE OF NEVADA
IN AND FOR THE COUNTY OF WASHOE

IN THE MATTER OF:)
)
EVAKAY BALDES, AND) Case No. JV24-00104
ALEXIS CLARK,) JV24-00105
)
MINOR CHILDREN.) Dept. No. JM1

MASTER'S RECOMMENDATION AND ORDER FOR DISMISSAL

The above-entitled matter came before the Court for a review hearing on July 10, 2024. Washoe County Human Services Agency was granted discretion to request closure of this case by a dismissal letter. Having received the letter of Washoe County Human Services Agency, dated October 30, 2024, and being fully advised in the premises and good cause appearing, the Court hereby orders as follows:

Washoe County Human Services Agency's legal and physical custody of Evakay Baldes and Alexis Clark is terminated and this matter is dismissed.

The permanency hearing scheduled for January 8, 2025, at 3:00 p.m., is hereby vacated.

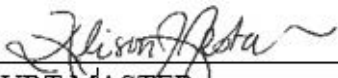
NRS 125C.0045(6) regarding abduction, concealment or detention of a child: PENALTY FOR VIOLATION OF ORDER: THE ABDUCTION, CONCEALMENT OR DETENTION OF A CHILD IN VIOLATION OF THIS ORDER IS PUNISHABLE AS A CATEGORY D FELONY AS PROVIDED IN NRS 193.130. NRS 200.359 provides that every person having a limited right of custody to a child or any parent having no right of custody to the child who

1 willfully detains, conceals or removes the child from a parent, guardian or other person having
2 lawful custody or a right of visitation of the child in violation of an order of this court, or
3 removes the child from the jurisdiction of the court without the consent of either the court or all
4 persons who have the right to custody or visitation is subject to being punished for a category D
5 felony as provided in NRS 193.130.

6 Pursuant to NRS 125C.0045(7) the terms of the Hague Convention of October 25, 1980,
7 adopted by the 14th Session of The Hague Conference on Private International Law, apply if a
8 parent abducts or wrongfully retains a child in a foreign country.

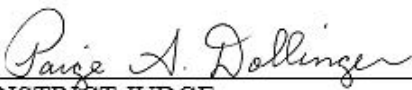
9 IT IS SO RECOMMENDED:

10 Dated: October 31, 2024

11 
12 COURT MASTER

13
14 IT IS SO ORDERED:

15 Dated: November 4, 2024

16 
17 DISTRICT JUDGE

18 NOTICE

19 These Recommendations are governed by WDCR 24 and WDFCR 32. Any objection or motion
20 to adopt or modify the master's recommendation shall be filed within 7 days after service of written
21 findings of fact and recommendation. The objection or motion to adopt or modify shall briefly state the
22 primary issues for review.
23
24
25
26



WASHOE COUNTY

HUMAN SERVICES AGENCY

350 SOUTH CENTER STREET
RENO, NEVADA 89501-2103
PHONE: (775) 785-8600
FAX: (775) 785-8648

October 30, 2024

Buffy Okuma, Chief Deputy District Attorney
1 South Sierra Street
Reno, Nevada 89501

RE: Request for Dismissal and Case Closure
Evakay Baldes DOB: 10/19/2009 Case: JV24-00104
Alexis Clark DOB: 02/24/2014 Case: JV24-00105

Dear Ms. Okuma:

I am writing to request that Washoe County Human Services Agency's legal and physical custody of Evakay Baldes and Alexis Clark be terminated by ex-parte order.

Evakay and Alexis were placed into the legal and physical custody of Washoe County Human Services Agency ("WCHSA") on January 24, 2024, as a result of the children finding their father, Donovan Clark's ("Mr. Clark") drugs and drug paraphernalia, their mother, Megan McCafferty ("Ms. McCafferty") allowing Mr. Clark to solely supervise the children while under the influence of drugs, and due to domestic violence between Mr. Clark and Ms. McCafferty.

Upon the girls entering foster care, Mr. Clark immediately began treatment services with the VA Center and successfully completed the Partial Hospitalization Program on February 23, 2024, and the 12-week, Intensive Outpatient; Addictive Disorders Treatment Program on May 24, 2024. Mr. Clark was regularly drug tested through the VA, with negative results, except for cannabis. Mr. Clark regularly drug tested through Sober 24 September and October 2024; he tested positive for cannabinoid the majority of tests and alcohol on October 1 and 13th, 2024.

Mr. Clark and Ms. McCafferty participated in Couples therapy with Jennifer Hubbert who reports the couple have made significant improvement and increased communication. Mr. Clark and Ms. McCafferty participated Family therapy with Tiffiny Herrick who also reports the family has made great improvements and she has no concerns.

Ms. McCafferty participated in individual therapy sessions with Jesse DeHaven which have now successfully completed. Ms. McCafferty reports having better boundaries and is now attending Alanon meetings.

Mr. Clark and Ms. McCafferty were attending the Circe of Security Parenting classes; however, were unable to apply the content to older children and were excused from the program.



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Evakay and Alexis also participated in therapeutic services. Evakay continues to have monthly check-ins. Therapeutic services with Alexis have been terminated and she is not expressing any emotional discomfort or stress in the home. Both children are thrilled to be home with their parents and report their parents have made significant progress.

There have been no concerns since Evakay and Alexis were placed on an in-home safety plan on July 23, 2024. The children attend school regularly. They have adjusted well to being home.

Mr. Baldes made no progress towards reunification and Evakay remains steadfast in not wanting contact with him.

WCHSA has identified Mr. Clark and Ms. McCafferty to be safe parents that are able to meet the basic needs of their daughters. Mr. Clark's substance use is not impacting his ability to meet the needs of his children. Mr. Clark and Ms. McCafferty are getting along and have developed better relationships skills. It is believed through assessment and evaluation that Mr. Clark and Ms. McCafferty are safe parents and there is no longer impending danger to keep this case open.

The Agency would respectfully request that this case be dismissed, and the permanency hearing, as to Evakay Baldes and Alexis Clark scheduled for January 8, 2025, at 3:00 p.m., be vacated.

Sincerely,

/s/ Jennie Ballou

Jennie Ballou, LSW
Human Services Case Worker III
Human Services Agency
JLB/tad